

evidentiary grounds. Although not in the proper form, the Court construes Plaintiff's dispute as to facts 29-32 as objections to evidence to paragraphs 4-7 of the Pires declaration.

The Court sustains the objections to paragraphs 4 and 5 as hearsay. Pires does not explain what information or records she reviewed nor how those were kept in the ordinary course of business. As such, the evidence does not meet the business records exception and without it the testimony is hearsay. The Court overrules objections to paragraphs 6 and 7 because the declarant is a recreation supervisor for the City and her lack of knowledge provides sufficient evidence to show lack of actual notice.

Plaintiff also argues that the depth of the water in the pool was too shallow. However, the dangerous condition alleged in the FAC is a rock, not a shallow pool. (FAC ¶¶13, 17.) Plaintiff cannot raise new issues in opposition that were not alleged in the complaint. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1257 ("new factual issues presented in opposition to a motion for summary judgment should be considered if the controlling pleading, construed broadly, encompasses them."))

Plaintiff also argues that *res ipsa loquitur* applies here. "[T]he doctrine of *res ipsa loquitur* is defined by statute as 'a presumption affecting the burden of producing evidence.' (Evid. Code, § 646, subd. (b).) The presumption arises when the evidence satisfies three conditions: " '(1) the accident must be of a kind which ordinarily does not occur in the absence of someone's negligence; (2) it must be caused by an agency or instrumentality within the exclusive control of the defendant; (3) it must not have been due to any voluntary action or contribution on the part of the plaintiff.' "[Citation.]" (*Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 825-826.)

However, this doctrine does not apply to prove the elements of a dangerous condition of public property. (*Id.* at 838.) In *Brown*, the Court noted that *res ipsa* might be used to show that a particular condition was dangerous and that a particular act or omission was negligent. (*Id.* at 832.) But it cannot be used to show actual or constructive notice. (*Id.* at 837.)

20. 9:00 AM CASE NUMBER: C25-01807
CASE NAME: ANTHONY MAPALO VS. ERIC MUHAMMAD
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**
FILED BY: MAPALO, ANTHONY
TENTATIVE RULING:

Before the Court is Plaintiff Tony Mapolo ("Plaintiff")'s motion for leave to file First Amended Complaint. The motion is "conditionally opposed" by Defendant VIP Protective Services, Inc. and Defendant Eric Muhammad (collectively, "Defendants").

Plaintiff moves pursuant to Code of Civil Procedure section 473(a)(1) to convert this action from a class action and Private Attorneys General Act representative action to a single-plaintiff individual action, remove Dwayne Cash and John Halfacre as named plaintiffs, and remove the Eighth Cause of Action for Violation of the Private Attorneys General Act.

For the following reasons, Plaintiff's motion is **granted**. The First Amended Complaint is deemed filed as of September 16, 2026. Plaintiff is ordered to file a separate copy of the First Amended Complaint

by September 18, 2026.

Analysis

Defendants “acknowledge that leave to amend is appropriate here,” but ask the Court to condition leave on granting an order of costs in favor of Defendants in the amount of \$13,988.63 as well as dismissal of “the to be mooted Motion to Compel (and for sanctions).” (Opp. at 2:21-23.)

Defendants further argue that “one court recognized [attorney fees] may be awarded under Cal. Code Civ. Proc. CCP § § 128.5 and 128.7 based on improper litigation tactics, even where not expressly permitted under Cal. Code Civ. Proc. § 473.” (Opp. at 4:23-25 [citing *Amezcuca v. Sup.Ct. (Massage Envy Franchising, LLC)* (2026) 120 Cal. App. 5th 116, 119].) Defendants’ reliance on *Amezcuca* is puzzling.

In *Amezcuca*, the Fourth District Court of Appeal issued a writ of mandate and directed the trial court to **vacate** an order that granted plaintiff leave to amend the operative complaint, but only if she paid \$25,000 to defendant. The Court noted that “[a]lthough there are statutes in our code that permit a trial court to award attorney fees as sanctions for pretrial motion practice under many circumstances, **section 473 is not one of them.**” (*Amezcuca, supra*, at p. 119 [emphasis added].)

Specifically, the *Amezcuca* court stated: “The trial court erred when it conditioned leave to amend on the payment of Massage Envy’s attorney fees. Subject to narrow exceptions not relevant here, courts may not order the payment of attorney fees to an opposing party unless they do so pursuant to statutory authority or an agreement by the parties: ‘Except as attorney[] fees are *specifically* provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties.’ (§ 1021, italics added.)” (*Amezcuca, supra*, at p. 127.)

The *Amezcuca* court noted that while several major treatises on California law interpreted case law authority to hold that the provision in section 473, subdivision (a)(1), that allows leave to amend a pleading to be conditioned “‘on such terms as may be proper’” authorizes courts to condition leave on payment of opposing counsel’s attorney fees, the first of those cases (*Fuller v. Vista Del Arroyo Hotel* (1941) 42 Cal.App.2d 400, also cited by Defendants) makes no specific mention of attorney fees. With respect to the second case, *Williams v. Myer* (1907) 150 Cal. 714 (also cited by Defendants), the *Amezcuca* court concluded that “[t]o the extent *Williams* can be read more broadly, to allow leave to amend to be conditioned on payment of attorney fees whenever it appears that such terms ‘may be just,’ it is also no longer good law.” (*Amezcuca, supra*, at p. 130.) Specifically, that under *Bauguess* trial courts do not have inherent supervisory power to order payment of attorney fees as a sanction, and such orders must be founded on express statutory authority. (*Bauguess v. Paine* (1978) 22 Cal.3d 626, 639.) Section 473, subdivision (a), does not include a provision that specifically authorizes the award of attorney fees to an opposing party, conditionally or otherwise.

In light of this authority, the Court grants Plaintiff’s motion without conditions.